

2020 C L D 1392

[Lahore]

Before Masud Abid Naqvi, J

MUHAMMAD JAVED---Appellant

Versus

MUHAMMAD RASHID---Respondent

R.F.A. No.708 of 2011, heard on 13th November, 2019.

(a) Negotiable Instruments Act (XXVI of 1881)---

---S. 118---Civil Procedure Code (V of 1908), O. XXXVII, Rr. 1 & 2---Suit on negotiable instrument---Presumptions as to negotiable instrument---Negotiable instrument drawn without consideration---Burden of proof---Scope---Plaintiff/respondent filed suit for recovery of certain amount on the basis of promissory note against the defendant/appellant, which was decreed---Held, that marginal witnesses of the pro note had fully corroborated the version of the plaintiff and had also testified about the execution of pro note---Expert of the Fingerprint Bureau had affirmed that the pro note bore the thumb impression of defendant---Defendant had failed to substantiate his claim that consideration of pro note was not received by him--- Appeal was dismissed.

(b) Negotiable Instruments Act (XXVI of 1881)---

---S. 118---Presumptions as to negotiable instrument---Scope---Initial presumption is that the negotiable instrument is made, drawn, accepted or endorsed for consideration and in a case to the contrary, onus is on the person who is claiming to have executed a guarantee cheque.

Muhammad Azizur Rehman v. Liaquat Ali 2007 CLD 1542 rel.

Shabbir Ahmad Khan for Appellant.

Ch. Amin Rehmat for Respondent.

Date of hearing: 13th November, 2019.

JUDGMENT

MASUD ABID NAQVI, J.---Brief facts of this appeal are that the respondent filed a suit under Order XXXVII, C.P.C. on the basis of promissory note for recovery of Rs.400,000/- against the appellant/ defendant. The appellant/defendant filed the written statement and raised factual as well as legal objections. Out of divergent pleadings of the parties, issues were framed by the learned Trial Court. The parties produced their respective evidence and after recording the same, learned Trial Court vide judgment and decree dated 01.07.2011 decreed the suit. Feeling aggrieved, the appellant/defendant has preferred instant Regular First Appeal and challenged the validity of the said judgment and decree.

2. I have heard the arguments of the learned counsel for the parties and have minutely gone through record as well as the impugned judgment and decree.

3. To prove his case, the plaintiff/ respondent appeared and deposed as PW-1 and produced Sajid Tufail and Hussan Gulzar as PW-2 and PW-3 respectively. The witnesses fully supported the contents of the plaint and the plaintiff's version. In documentary evidence plaintiff produced original receipt pronote/Exh.P1 and Exh.P2. On the other hand, defendant/appellant himself appeared as DW-1 and examined Asim Rizwan and Saghir Ahmed as DW-2 and DW-3 respectively. Muhammad Ashraf, Sub-Inspector, Expert Fingerprint Bureau, Punjab also got recorded his statement as CW-1.

Marginal witnesses of receipt/ pronote (Exh.P1) have appeared in the witness box as PW-2 and PW-3 and fully corroborated the version of respondent/plaintiff taken in the plaint and also testified the execution of the receipt/pronote (Exh.P1). Even otherwise, report of Expert Fingerprint Bueau, Punjab also affirms that the receipt (Exh.P1) and (Exh. P2) bear the thumb impression of appellant/defendant.

It is well-settled law that under section 118 of the Negotiable Instruments Act, 1881, there is an initial presumption that the negotiable instrument is made, drawn, accepted or endorsed for consideration and contrary to this, the onus is on the person who is denying the consideration to prove the same. The honorable Supreme Court in a case reported as "Muhammad Azizur Rehman v. Liaquat Ali (2007 CLD 1542) had held as under:

" ..According to section 118 of the Act, until the contrary is proved, the presumption shall be made that every negotiable instrument was made or drawn for consideration ."

4. By scanning the contents of the pleadings, oral as well as documentary evidence, it is crystal clear that the appellant / defendant has failed to substantiate his claim that consideration of pronote has not been received by him and he will not be relieved from discharging the above burden of proof. Testing the case in hand, at the touchstone of the abovementioned settled law, I feel no hesitation in holding that the appellant/defendant has miserably failed to establish/ substantiate/ prove his claim(s). In view of the foregoing discussion, this appeal is dismissed.

SA/M-92/L Appeal dismissed.